
REPORTER'S NOTE

Orders commencing with June 24, 2019, begin with page 903. The preceding orders in 588 U. S., from June 20, 2019, were reported in Part 1, at 901–902. These page numbers are the same as they will be in the bound volume, thus making the *permanent* citations available upon publication of the preliminary prints of the United States Reports.

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Certiorari Granted—Vacated and Remanded

No. 17–1693. BLUE WATER NAVY VIETNAM VETERANS ASSN., INC. *v.* WILKIE, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari granted, judgment vacated, and case remanded with instructions to dismiss the case as moot. See *United States v. Munsingwear, Inc.*, 340 U. S. 36 (1950). Reported below: 875 F. 3d 1102.

Vacated and Remanded After Certiorari Granted

No. 17–1679. GRAY *v.* WILKIE, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. [Certiorari granted, 586 U. S. 985.] Judgment vacated, and case remanded with instructions to dismiss the case as moot. See *United States v. Munsingwear, Inc.*, 340 U. S. 36 (1950)

Certiorari Dismissed

No. 18–8953. MORRIS *v.* FRANCISCO, SOLICITOR GENERAL OF THE UNITED STATES, ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

Miscellaneous Orders

No. 18A1104. FORD *v.* UNITED STATES. D. C. E. D. Cal. Application for stay, addressed to THE CHIEF JUSTICE and referred to the Court, denied.

No. 18A1238. PRICE *v.* DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL. Motion of National Public Radio, Inc., et al. for leave to intervene to file motion to unseal granted, and motion to unseal granted.

No. 18M173. HOLMES *v.* ALABAMA DEPARTMENT OF HUMAN RESOURCES; and

No. 18M174. DOE *v.* COLGATE UNIVERSITY. Motions to direct the Clerk to file petitions for writ of certiorari out of time denied.

No. 150, Orig. ARIZONA *v.* CALIFORNIA. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

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No. 17–1678. *HERNANDEZ ET AL. v. MESA*. C. A. 5th Cir. [Certiorari granted, 587 U. S. 1025.] Motion of petitioners to dispense with printing joint appendix granted.

No. 18–877. *ALLEN ET AL. v. COOPER, GOVERNOR OF NORTH CAROLINA, ET AL.* C. A. 4th Cir. [Certiorari granted, 587 U. S. 1039.] Motion of petitioners to dispense with printing joint appendix granted.

No. 18–921. *ROMAN CATHOLIC ARCHDIOCESE OF SAN JUAN, PUERTO RICO, ET AL. v. ACEVEDO FELICIANO ET AL.* Sup. Ct. P. R.; and

No. 18–1140. *AVCO CORP. v. SIKKELEE, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF SIKKELEE, DECEASED, ET AL.* C. A. 3d Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 18–7988. *FORNEY v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [587 U. S. 935] denied.

No. 18–8930. *GURVEY v. COWAN, LIEBOWITZ & LATMAN, P. C., ET AL.* C. A. 2d Cir.; and

No. 18–8934. *MILLER v. GAUJOT, JUDGE, MONONGALIA COUNTY CIRCUIT COURT, ET AL.* C. A. 4th Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until July 15, 2019, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 18–9476. *IN RE ANDERSON*. Petition for writ of habeas corpus denied.

Certiorari Granted

No. 18–1150. *GEORGIA ET AL. v. PUBLIC.RESOURCE.ORG, INC.* C. A. 11th Cir. Certiorari granted. Reported below: 906 F. 3d 1229.

No. 18–776. *GUERRERO-LASPRILLA v. BARR, ATTORNEY GENERAL*; and

No. 18–1015. *OVALLES v. BARR, ATTORNEY GENERAL*. C. A. 5th Cir. Certiorari in No. 18–776 granted. Certiorari in No. 18–1015 granted limited to Question 2 presented by the petition.

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Cases consolidated, and a total of one hour is allotted for oral argument. Reported below: No. 18–776, 737 Fed. Appx. 230; No. 18–1015, 741 Fed. Appx. 259.

No. 18–916. DEX MEDIA, INC. *v.* CLICK-TO-CALL TECHNOLOGIES, LP, ET AL. C. A. Fed. Cir. Certiorari granted limited to Question 1 presented by the petition. Reported below: 899 F. 3d 1321.

No. 18–1023. MAINE COMMUNITY HEALTH OPTIONS *v.* UNITED STATES;

No. 18–1028. MODA HEALTH PLAN, INC. *v.* UNITED STATES; and BLUE CROSS AND BLUE SHIELD OF NORTH CAROLINA *v.* UNITED STATES; and

No. 18–1038. LAND OF LINCOLN MUTUAL HEALTH INSURANCE CO. *v.* UNITED STATES. C. A. Fed. Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: No. 18–1023 and No. 18–1028 (second judgment), 729 Fed. Appx. 939; No. 18–1028 (first judgment), 892 F. 3d 1311; No. 18–1038, 892 F. 3d 1184.

No. 18–6943. BANISTER *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted, and certiorari granted limited to the following question: “Whether and under what circumstances a timely Rule 59(e) motion should be recharacterized as a second or successive habeas petition under *Gonzalez v. Crosby*, 545 U. S. 524 (2005).”

Certiorari Denied

No. 17–1175. POARCH BAND OF CREEK INDIANS ET AL. *v.* WILKES ET AL. Sup. Ct. Ala. Certiorari denied.

No. 17–1183. AIRLINE SERVICE PROVIDERS ASSN. ET AL. *v.* LOS ANGELES WORLD AIRPORTS ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 873 F. 3d 1074.

No. 17–5503. OCHOA *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 687 Fed. Appx. 305.

No. 17–6680. EATON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 692 Fed. Appx. 321.

No. 17–6856. BEARCOMESOUT *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 696 Fed. Appx. 241.

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No. 17–7177. *GORDILLO-ESCANDON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 706 Fed. Appx. 119.

No. 17–8002. *SANDERS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 712 Fed. Appx. 956.

No. 17–8475. *SMITH v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–106. *TURNER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 885 F. 3d 949.

No. 18–109. *ARIOSIA DIAGNOSTICS, INC. v. ILLUMINA, INC.* C. A. Fed. Cir. Certiorari denied. Reported below: 705 Fed. Appx. 1002.

No. 18–164. *FIRST SOLAR, INC., ET AL. v. MINEWORKERS’ PENSION SCHEME ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 881 F. 3d 750.

No. 18–447. *ALABAMA DEPARTMENT OF REVENUE ET AL. v. CSX TRANSPORTATION, INC.; and*

No. 18–612. *CSX TRANSPORTATION, INC. v. ALABAMA DEPARTMENT OF REVENUE ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 888 F. 3d 1163.

No. 18–486. *TOSHIBA CORP. v. AUTOMOTIVE INDUSTRIES PENSION TRUST FUND ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 896 F. 3d 933.

No. 18–575. *YPF S. A. v. PETERSEN ENERGIA INVERSORA S. A U. ET AL.; and*

No. 18–581. *ARGENTINE REPUBLIC v. PETERSEN ENERGIA INVERSORA S. A. U. ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 895 F. 3d 194.

No. 18–600. *TEXAS ADVANCED OPTOELECTRONIC SOLUTIONS, INC. v. RENESAS ELECTRONICS AMERICA, INC., FKA INTERSIL CORP.* C. A. Fed. Cir. Certiorari denied. Reported below: 895 F. 3d 1304.

No. 18–762. *PINA v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 440.

No. 18–821. *WILLS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 742 Fed. Appx. 887.

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No. 18–866. *ILLINOIS CENTRAL RAILROAD CO. v. TENNESSEE DEPARTMENT OF REVENUE ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 26.

No. 18–987. *McKESSON CORP. ET AL. v. TRUE HEALTH CHIROPRACTIC, INC., ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 896 F. 3d 923.

No. 18–1054. *JACKSON v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 909 F. 3d 228.

No. 18–1055. *MAURICIO-BENITEZ v. BARR, ATTORNEY GENERAL.* C. A. 5th Cir. Certiorari denied. Reported below: 908 F. 3d 144.

No. 18–1062. *LOVE TERMINAL PARTNERS, L. P., ET AL. v. UNITED STATES.* C. A. Fed. Cir. Certiorari denied. Reported below: 889 F. 3d 1331.

No. 18–1092. *ASSOCIATED BUILDERS AND CONTRACTORS OF CALIFORNIA COOPERATION COMMITTEE, INC. v. BECERRA, ATTORNEY GENERAL OF CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 898 F. 3d 879.

No. 18–1097. *SKYWEST, INC., ET AL. v. HIRST ET AL.*; and
No. 18–1419. *HIRST ET AL. v. SKYWEST, INC., ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 910 F. 3d 961.

No. 18–1120. *RIFFEY ET AL. v. PRITZKER, GOVERNOR OF ILLINOIS, ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 910 F. 3d 314.

No. 18–1122. *ALPENGLOW BOTANICALS, LLC, ET AL. v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. Reported below: 894 F. 3d 1187.

No. 18–1145. *MINERVA DAIRY, INC., ET AL. v. PFAFF, SECRETARY-DESIGNEE OF THE WISCONSIN DEPARTMENT OF AGRICULTURE, ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 905 F. 3d 1047.

No. 18–1166. *SIEVERS v. NEBRASKA.* Sup. Ct. Neb. Certiorari denied. Reported below: 300 Neb. 26, 911 N. W. 2d 607.

No. 18–1191. *DAVENPORT v. ESTATE OF CUMMINGS.* C. A. 11th Cir. Certiorari denied. Reported below: 906 F. 3d 934.

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No. 18–1198. *ALBRIGHT v. TENNESSEE*. Sup. Ct. Tenn. Certiorari denied. Reported below: 564 S. W. 3d 809.

No. 18–1199. *INVESTPIC, LLC v. SAP AMERICA, INC.* C. A. Fed. Cir. Certiorari denied. Reported below: 898 F. 3d 1161.

No. 18–1220. *FRANKLIN v. AMERICAN ELEVATOR INSPECTIONS, INC.* Ct. App. Tex., 14th Dist. Certiorari denied.

No. 18–1260. *COOKE v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 918 F. 3d 77.

No. 18–1300. *OBUSKOVIC v. WOOD ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 761 Fed. Appx. 144.

No. 18–1318. *MARQUETTE TRANSPORTATION Co., L. L. C. v. DUNN*. C. A. 5th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 888.

No. 18–1327. *SIMS v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied. Reported below: 569 S. W. 3d 634.

No. 18–1328. *GILMORE ET AL. v. HOLLAND ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 756 Fed. Appx. 147.

No. 18–1331. *BOLTON v. DEPARTMENT OF THE NAVY BOARD FOR CORRECTION OF NAVAL RECORDS*. C. A. 6th Cir. Certiorari denied. Reported below: 914 F. 3d 401.

No. 18–1332. *ALBERTO RECINOS v. BOARD OF TRUSTEES, POLICE AND FIREMEN’S RETIREMENT SYSTEM*. Super. Ct. N. J., App. Div. Certiorari denied.

No. 18–1335. *CONTINENTAL MOTORS, INC. v. SNIDER ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 758 Fed. Appx. 283.

No. 18–1337. *RAEL ET AL. v. LAYNG, UNITED STATES TRUSTEE, REGION 19*. C. A. 10th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 649.

No. 18–1340. *FOWLER v. UTAH ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 590.

No. 18–1348. *ORION INSURANCE GROUP ET AL. v. WASHINGTON STATE OFFICE OF MINORITY & WOMEN’S BUSINESS ENTERPRISES ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 556.

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No. 18–1352. *COMMERCE BANK v. WILLIAMSON ET AL.* C. A. 8th Cir. Certiorari denied.

No. 18–1360. *THORNTON v. UNITED STATES ET AL.* C. A. D. C. Cir. Certiorari denied.

No. 18–1361. *STILLWELL ET VIR v. EAGLE-KIRKPATRICK MANAGEMENT Co., INC., ET AL.* Ct. App. Ind. Certiorari denied. Reported below: 107 N. E. 3d 1113.

No. 18–1377. *GYAMFI v. ACOSTA, SECRETARY OF LABOR, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–1378. *LEDET v. LOUISIANA DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONS.* Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2017–1457 (La. App. 1 Cir. 9/24/18), 259 So. 3d 348.

No. 18–1391. *BAMBA v. FENTON ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 758 Fed. Appx. 8.

No. 18–1396. *PELLETIER v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION, ET AL.* Sup. Ct. Ark. Certiorari denied. Reported below: 2018 Ark. 347, 561 S. W. 3d 730.

No. 18–1403. *MIR v. LEVINE ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 726.

No. 18–1408. *WASHEK v. VERMONT.* Sup. Ct. Vt. Certiorari denied.

No. 18–1420. *BURNS v. ALABAMA.* C. A. 11th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 272.

No. 18–1453. *RANGARAJAN v. JOHNS HOPKINS UNIVERSITY ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 917 F. 3d 218.

No. 18–1463. *MAHER v. IOWA STATE UNIVERSITY.* C. A. 8th Cir. Certiorari denied. Reported below: 915 F. 3d 1210.

No. 18–1464. *JIRICKO v. FRANKENBURG JENSEN LAW FIRM ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 764 Fed. Appx. 664.

No. 18–1467. *CLEVINGER v. LAWRENCE ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 645.

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No. 18–1478. *STECK v. MARYLAND*. Ct. Sp. App. Md. Certiorari denied. Reported below: 239 Md. App. 440, 197 A. 3d 531.

No. 18–1483. *BARRY v. FRESHOUR ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 905 F. 3d 912.

No. 18–7038. *OWENS v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 18–7449. *PATTON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 259.

No. 18–7696. *WALTON v. BALLARD, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 159.

No. 18–7721. *CARTER v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 534 and 907 F. 3d 1199.

No. 18–8046. *PAULMIER v. HAWAII*. Int. Ct. App. Haw. Certiorari denied. Reported below: 143 Haw. 100, 423 P. 3d 419.

No. 18–8224. *DICKERSON v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 735 Fed. Appx. 349.

No. 18–8270. *HETTINGA v. LOUMENA*. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 18–8432. *FOUST v. OHIO*. Sup. Ct. Ohio. Certiorari denied. Reported below: 153 Ohio St. 3d 553, 2018-Ohio-3154, 108 N. E. 3d 1082.

No. 18–8456. *MIRAMONTES ROMAN v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 743.

No. 18–8524. *TSHIANSI v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 559.

No. 18–8666. *WOOD v. CARPENTER, INTERIM WARDEN*. C. A. 10th Cir. Certiorari denied. Reported below: 907 F. 3d 1279.

No. 18–8844. *MORRIS v. TENNESSEE*. C. A. 6th Cir. Certiorari denied.

No. 18–8857. *WEISHEIT v. INDIANA*. Sup. Ct. Ind. Certiorari denied. Reported below: 109 N. E. 3d 978.

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No. 18–8887. *SOLER v. CAPITAL ONE AUTO FINANCE*. C. A. 11th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 137.

No. 18–8890. *JONES v. SMITH, WARDEN, ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–8899. *ELESON v. LIZARRAGA, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–8901. *JONES v. GOODWIN, JUDGE, CRIMINAL COURT FOR SULLIVAN COUNTY, TENNESSEE*. C. A. 6th Cir. Certiorari denied.

No. 18–8903. *BARNABY v. WITKOWSKI ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 758 Fed. Appx. 431.

No. 18–8904. *MATTHEWS v. RATLIFF (TR MOTORS)*. Ct. Civ. App. Ala. Certiorari denied. Reported below: 292 So. 3d 370.

No. 18–8905. *BRYANT v. ARMY CORPS OF ENGINEERS ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 206.

No. 18–8914. *CAZARES v. CASSADY, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–8916. *WRIGHT v. CALIFORNIA*. Ct. App. Cal., 2d App. Dist., Div. 6. Certiorari denied.

No. 18–8918. *WILEY v. WILEY*. Ct. App. Wash. Certiorari denied. Reported below: 4 Wash. App. 2d 1003.

No. 18–8921. *TELLEZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–8925. *COOKS v. SUPERIOR COURT OF CALIFORNIA, LOS ANGELES COUNTY, ET AL.* Sup. Ct. Cal. Certiorari denied.

No. 18–8926. *JACKSON v. MUKORO ET AL.* Ct. App. Tex., 1st Dist. Certiorari denied.

No. 18–8927. *GILLARD v. ILLINOIS*. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2018 IL App (1st) 173035–U.

No. 18–8933. *STEVENSON v. PENNSYLVANIA BOARD OF PROBATION AND PAROLE ET AL.* C. A. 3d Cir. Certiorari denied.

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No. 18–8939. *DAISY T. v. ARIZONA DEPARTMENT OF CHILD SAFETY ET AL.* Ct. App. Ariz. Certiorari denied.

No. 18–8945. *BLACK v. LIFE UNLIMITED, INC.* C. A. 8th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 110.

No. 18–8947. *PALMA v. HARRIS COUNTY APPRAISAL REVIEW BOARD*; and *PALMA v. HARRIS COUNTY APPRAISAL DISTRICT*. Ct. App. Tex., 1st Dist. Certiorari denied.

No. 18–8950. *MANUEL MORAN v. ARIZONA.* Ct. App. Ariz. Certiorari denied.

No. 18–8954. *MILLHOUSE v. DAVIS ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 733 Fed. Appx. 32.

No. 18–8955. *BUTLER v. JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8959. *ARLOTTA v. MCKESSON CORP. ET AL.* C. A. 2d Cir. Certiorari denied.

No. 18–8962. *COLLINS v. KELLER.* C. A. 4th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 572.

No. 18–8966. *DRAKE v. UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF TEXAS.* C. A. 5th Cir. Certiorari denied.

No. 18–8969. *LUNSFORD v. INDIANA.* Ct. App. Ind. Certiorari denied. Reported below: 122 N. E. 3d 461.

No. 18–8973. *JOHNSON v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS.* Sup. Ct. Va. Certiorari denied.

No. 18–8974. *ROBERSON v. TEXAS.* Ct. App. Tex., 6th Dist. Certiorari denied.

No. 18–8976. *SHEPPARD v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Certiorari denied.

No. 18–8979. *JACOBS v. MACDONALD ET AL.* Sup. Ct. N. H. Certiorari denied. Reported below: 171 N. H. 668, 201 A. 3d 1253.

No. 18–8981. *BOWLING v. MARYLAND.* Ct. Sp. App. Md. Certiorari denied. Reported below: 239 Md. App. 716.

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No. 18–8984. *CAETANO v. PEERY, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–9004. *ARCHER v. PARAMO, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 637.

No. 18–9012. *ENDSLEY v. BROWN ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 764 Fed. Appx. 582.

No. 18–9047. *SWECKER ET AL. v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 65.

No. 18–9048. *BOYKINS v. NAPEL, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–9054. *FORQUER v. WELLS FARGO BANK, N. A.* Cir. Ct. Harford County, Md. Certiorari denied.

No. 18–9065. *ROSA v. FLORIDA ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–9072. *MCBRIDE v. RYAN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS*. C. A. 9th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 575.

No. 18–9078. *BRADFORD v. WORKERS’ COMPENSATION APPEALS BOARD ET AL.* Ct. App. Cal., 2d App. Dist., Div. 7. Certiorari denied.

No. 18–9083. *GRYDER v. RUDY ET AL.* Sup. Ct. Va. Certiorari denied.

No. 18–9112. *BRONSON v. JACKSON-MITCHELL, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–9136. *J. T. v. FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL.* Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 274 So. 3d 374.

No. 18–9226. *SEARS v. BOTTORFF ET AL.* Ct. App. Tenn. Certiorari denied.

No. 18–9230. *KENNEDY v. BARR, ATTORNEY GENERAL*. C. A. 2d Cir. Certiorari denied.

No. 18–9257. *RARDEN v. OHIO*. Ct. App. Ohio, Butler County. Certiorari denied. Reported below: 2018-Ohio-4487.

No. 18–9260. *BRAXTON v. TENNESSEE*. Ct. Crim. App. Tenn. Certiorari denied.

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No. 18–9279. *PREETORIUS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 875.

No. 18–9314. *PIERCE v. SHERMAN, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 655.

No. 18–9329. *BARNHILL v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–9335. *ILLARRAMENDI v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 906 F. 3d 268.

No. 18–9336. *ELIAS CAMILO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–9340. *SUBASIC v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 742 Fed. Appx. 775.

No. 18–9352. *RIDLEY v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 18–9357. *BRADLEY v. MISSISSIPPI*. Sup. Ct. Miss. Certiorari denied.

No. 18–9362. *RING v. RYAN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–9368. *BLACKSTONE v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 903 F. 3d 1020.

No. 18–9371. *ADKINSON v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 916 F. 3d 605.

No. 18–9394. *EVANS v. DELAWARE*. Sup. Ct. Del. Certiorari denied. Reported below: 207 A. 3d 166.

No. 18–9413. *ROYAL v. GREWAL, ATTORNEY GENERAL OF NEW JERSEY, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–9445. *VASSOR v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 244 So. 3d 1121.

No. 18–9474. *MADDEN v. MELVIN, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 17–5410. *TYLER v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

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No. 18–1065. INTERPIPE CONTRACTING, INC. *v.* BECERRA, ATTORNEY GENERAL OF CALIFORNIA, ET AL. C. A. 9th Cir. Motion of Associated General Contractors of America for leave to file brief as *amicus curiae* out of time denied. Certiorari denied. Reported below: 898 F. 3d 879.

No. 18–1074. PERRYMAN *v.* ROMERO ET AL. C. A. 9th Cir. Motion of Center for Individual Rights for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 906 F. 3d 747.

No. 18–1084. MINNESOTA *v.* JOHNSON. Sup. Ct. Minn. Motion of respondent for leave to proceed *in forma pauperis* granted. Motion of Mothers Against Drunk Driving for leave to file brief as *amicus curiae* granted. Certiorari denied.

No. 18–1317. AMERICAN INSTITUTE FOR INTERNATIONAL STEEL, INC., ET AL. *v.* UNITED STATES ET AL. C. A. Fed. Cir. Certiorari before judgment denied.

No. 18–1371. MORLEY *v.* CENTRAL INTELLIGENCE AGENCY. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 894 F. 3d 389.

No. 18–1430. REDIGI INC. ET AL. *v.* CAPITOL RECORDS, LLC, ET AL. C. A. 2d Cir. Motion of OmniQ for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 910 F. 3d 649.

No. 18–1468. UNITED MINE WORKERS OF AMERICA COMBINED BENEFIT FUND ET AL. *v.* TOFFEL, AS CHAPTER 7 TRUSTEE FOR WALTER ENERGY INC., ET AL. C. A. 11th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 911 F. 3d 1121.

No. 18–8440. RUNNELS *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Motion of respondent for leave to file brief in opposition under seal with redacted copies for the public record granted. Motion of petitioner for leave to file reply brief under seal with redacted copies for the public record granted. Certiorari denied. Reported below: 746 Fed. Appx. 308.

No. 18–8982. WARREN *v.* SHAPIRO, ATTORNEY GENERAL OF PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. JUSTICE

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ALITO took no part in the consideration or decision of this petition. Reported below: 651 Pa. 85, 202 A. 3d 682.

No. 18–9250. *DREVALEVA v. ALAMEDA HEALTH SYSTEM ET AL.* C. A. 9th Cir. Certiorari before judgment denied.

Rehearing Denied

No. 18–1060. *WEISS, INDIVIDUALLY AND AS EXECUTOR OF THE ESTATE OF MARSH, DECEASED v. MARSH, AS EXECUTOR OF THE ESTATE OF MARSH, DECEASED, ET AL.* (two judgments), 587 U. S. 939;

No. 18–1153. *RIZZO v. APPLIED MATERIALS, INC., ET AL.*, 587 U. S. 971;

No. 18–7409. *LEONARD v. FLORIDA ET AL.*, 586 U. S. 1231;

No. 18–7724. *JOHNSON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 587 U. S. 923;

No. 18–7850. *HOWARD v. LESATZ, WARDEN*, 587 U. S. 943;

No. 18–7852. *HUG v. CONLEY, WARDEN*, 587 U. S. 943;

No. 18–7908. *HAYNES v. WALMART ET AL.*, 587 U. S. 945;

No. 18–7932. *HAMER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 587 U. S. 945;

No. 18–7934. *FARTHING v. WATSON, WARDEN*, 587 U. S. 945;

No. 18–7945. *WATTS v. MICHIGAN*, 587 U. S. 945;

No. 18–7956. *IBEABUCHI v. PENZONE*, 587 U. S. 946;

No. 18–7987. *IBEABUCHI v. PENZONE ET AL.*, 587 U. S. 946;

No. 18–7999. *GALAN v. GEGENHEIMER ET AL.*, 587 U. S. 947;

No. 18–8018. *KENDRICK v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.*, 587 U. S. 962;

No. 18–8105. *HERRIOTT v. HERRIOTT*, 587 U. S. 974;

No. 18–8193. *ALBORS GONZALEZ v. STERN ET AL.*, 587 U. S. 975;

No. 18–8200. *BOONE v. TEXAS*, 587 U. S. 975;

No. 18–8206. *CLARK v. CARR, ATTORNEY GENERAL OF GEORGIA*, 587 U. S. 949;

No. 18–8335. *CHAPMAN v. OBAMA*, 587 U. S. 964;

No. 18–8585. *BLOODYWONE v. BELLNIER, SUPERINTENDENT, MARCY CORRECTIONAL FACILITY, ET AL.*, 587 U. S. 966; and

No. 18–8716. *DONAHUE v. PENNSYLVANIA DEPARTMENT OF LABOR AND INDUSTRY ET AL.*, 587 U. S. 995. Petitions for rehearing denied.

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No. 18–6700. DEPIETRO *v.* ALLSTATE INSURANCE CO. ET AL., 586 U. S. 1089. Motion for leave to file petition for rehearing denied.

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Certiorari Granted—Vacated and Remanded

No. 17–8390. SPERLING *v.* UNITED STATES. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *United States v. Haymond*, 588 U. S. 634 (2019). Reported below: 699 Fed. Appx. 636.

No. 17–9221. HALL *v.* UNITED STATES. C. A. 4th Cir. Reported below: 725 Fed. Appx. 210;

No. 18–7123. ALLEN *v.* UNITED STATES. C. A. 4th Cir. Reported below: 734 Fed. Appx. 898;

No. 18–7490. REED *v.* UNITED STATES. C. A. 11th Cir. Reported below: 752 Fed. Appx. 851; and

No. 18–9071. MOODY *v.* UNITED STATES. C. A. 5th Cir. Reported below: 749 Fed. Appx. 310. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019).

No. 18–294. HONCHARIW *v.* COUNTY OF STANISLAUS, CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Knick v. Township of Scott*, 588 U. S. 180 (2019). Reported below: 715 Fed. Appx. 760.

No. 18–351. CITY OF PENSACOLA, FLORIDA, ET AL. *v.* KONDRA-T'YEV ET AL. C. A. 11th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *American Legion v. American Humanist Assn.*, 588 U. S. 29 (2019). Reported below: 903 F. 3d 1169.

No. 18–1214. ROSS, SECRETARY OF COMMERCE, ET AL. *v.* CALIFORNIA ET AL. C. A. 9th Cir. Motion of Fair Lines America Foundation for leave to file brief as *amicus curiae* granted. Certiorari before judgment granted, judgment of the District Court vacated, and case remanded to the Court of Appeals for further consideration in light of *Department of Commerce v. New York*, 588 U. S. 752 (2019).

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No. 18–5234. *RODRIGUEZ v. UNITED STATES*. C. A. 2d Cir. Reported below: 862 F. 3d 223;

No. 18–5306. *JEFFERSON v. UNITED STATES*. C. A. 6th Cir. Reported below: 726 Fed. Appx. 393;

No. 18–6985. *BARRETT, AKA SEALED DEFENDANT v. UNITED STATES*. C. A. 2d Cir. Reported below: 903 F. 3d 166;

No. 18–7166. *MANN v. UNITED STATES*. C. A. 11th Cir. Reported below: 754 Fed. Appx. 812;

No. 18–7331. *DOUGLAS v. UNITED STATES*. C. A. 1st Cir. Reported below: 907 F. 3d 1; and

No. 18–7996. *WATKINS v. UNITED STATES*. C. A. 2d Cir. Reported below: 744 Fed. Appx. 27. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *United States v. Davis*, 588 U. S. 445 (2019).

No. 18–7439. *WARD v. UNITED STATES*. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of the position asserted by the Solicitor General in his letter for the United States filed on June 18, 2019.

Remanded After Certiorari Granted

No. 18–557. *DEPARTMENT OF COMMERCE ET AL. v. UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF NEW YORK ET AL.* (two judgments). C. A. 2d Cir. [Certiorari granted *sub nom. In re Department of Commerce*, 586 U. S. 1018.] Case remanded to the Court of Appeals with instructions to vacate that court’s orders dated September 25 and October 9, 2018. See *United States v. Munsingwear, Inc.*, 340 U. S. 36 (1950)

Miscellaneous Order

No. 18–7739. *HOLGUIN-HERNANDEZ v. UNITED STATES*. C. A. 5th Cir. [Certiorari granted, 587 U. S. 1039.] K. Winn Allen, Esq., of Washington, D. C., is invited to brief and argue this case as *amicus curiae* in support of judgment below.

Certiorari Granted

No. 18–1048. *GE ENERGY POWER CONVERSION FRANCE SAS, CORP., FKA CONVERTEAM SAS v. OUTOKUMPU STAINLESS USA, LLC, ET AL.* C. A. 11th Cir. Certiorari granted. Reported below: 902 F. 3d 1316.

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No. 18–1059. *KELLY v. UNITED STATES*. C. A. 3d Cir. Certiorari granted. Reported below: 909 F. 3d 550.

No. 18–1086. *LUCKY BRAND DUNGAREES, INC., ET AL. v. MARCEL FASHIONS GROUP, INC.* C. A. 2d Cir. Certiorari granted. Reported below: 898 F. 3d 232.

No. 18–1233. *ROMAG FASTENERS, INC. v. FOSSIL GROUP, INC., FKA FOSSIL, INC., ET AL.* C. A. Fed. Cir. Certiorari granted.

No. 18–1269. *RODRIGUEZ, AS CHAPTER 7 TRUSTEE FOR THE BANKRUPTCY ESTATE OF UNITED WESTERN BANCORP, INC. v. FEDERAL DEPOSIT INSURANCE CORPORATION, AS RECEIVER FOR UNITED WESTERN BANK*. C. A. 10th Cir. Certiorari granted. Reported below: 914 F. 3d 1262.

No. 17–1268. *OPATI, IN HER OWN RIGHT, AND AS EXECUTRIX OF THE ESTATE OF OPATI, DECEASED, ET AL. v. REPUBLIC OF SUDAN ET AL.* C. A. D. C. Cir. Certiorari granted limited to Question 2 presented by the petition. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 864 F. 3d 751.

No. 17–1712. *THOLE ET AL. v. U.S. BANK N. A. ET AL.* C. A. 8th Cir. Certiorari granted. In addition to the questions presented by the petition, the parties are directed to brief and argue the following question: “Whether petitioners have demonstrated Article III standing.” Reported below: 873 F. 3d 617.

No. 18–587. *DEPARTMENT OF HOMELAND SECURITY ET AL. v. REGENTS OF THE UNIVERSITY OF CALIFORNIA ET AL.* C. A. 9th Cir.;

No. 18–588. *TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. v. NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE ET AL.* C. A. D. C. Cir.; and

No. 18–589. *MCALEENAN, ACTING SECRETARY OF HOMELAND SECURITY, ET AL. v. BATALLA VIDAL ET AL.* C. A. 2d Cir. Certiorari in No. 18–587 granted. Certiorari before judgment in Nos. 18–588 and 18–589 granted. Cases consolidated, and a total of one hour is allotted for oral argument. Reported below: No. 18–587, 908 F. 3d 476.

No. 18–882. *BABB v. WILKIE, SECRETARY OF VETERANS AFFAIRS*. C. A. 11th Cir. Certiorari granted limited to the follow-

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ing question: “Whether the federal-sector provision of the Age Discrimination in Employment Act of 1967, which provides that personnel actions affecting agency employees aged 40 years or older shall be made free from any ‘discrimination based on age,’ 29 U.S.C. §633a(a), requires a plaintiff to prove that age was a but-for cause of the challenged personnel action.” Reported below: 743 Fed. Appx. 280.

No. 18–1195. *ESPINOZA ET AL. v. MONTANA DEPARTMENT OF REVENUE ET AL.* Sup. Ct. Mont. Motions of Cato Institute, Liberty Justice Center et al., Georgia Goal Scholarship Program, Inc., and Pioneer Institute, Inc., for leave to file briefs as *amici curiae* granted. Certiorari granted. Reported below: 393 Mont. 446, 435 P. 3d 603.

No. 18–6662. *SHULAR v. UNITED STATES.* C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted. Reported below: 736 Fed. Appx. 876.

Certiorari Denied

No. 18–664. *BAUERLY, COMMISSIONER, MINNESOTA DEPARTMENT OF REVENUE v. FIELDING, TRUSTEE OF THE REID AND ANN MACDONALD IRREVOCABLE GST TRUST FOR MACDONALD, ET AL.* Sup. Ct. Minn. Certiorari denied. Reported below: 916 N. W. 2d 323.

No. 18–832. *PETERSEN v. NCL (BAHAMAS) LTD., DBA NORWEGIAN CRUISE LINE.* C. A. 11th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 246.

No. 18–954. *SPEELMAN v. OHIO.* Ct. App. Ohio, 6th App. Dist., Lucas County. Certiorari denied. Reported below: 2017-Ohio-9306, 102 N. E. 3d 1185.

No. 18–1013. *WINSTEAD ET AL. v. JOHNSON*; and

No. 18–1186. *JOHNSON v. WINSTEAD ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 900 F. 3d 428.

No. 18–6286. *CHAMBERLIN v. HALL, COMMISSIONER, MISSISSIPPI DEPARTMENT OF CORRECTIONS.* C. A. 5th Cir. Certiorari denied. Reported below: 885 F. 3d 832.

No. 18–6755. *LACY v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. Reported below: 904 F. 3d 889.

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No. 18–7094. SMITH *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 4 Cal. 5th 1134, 417 P. 3d 662.

No. 18–7594. ROGERS *v.* FORD, WARDEN. Sup. Ct. Ga. Certiorari denied.

No. 18–428. UNITED STATES *v.* SALAS. C. A. 10th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this motion and this petition. Reported below: 889 F. 3d 681.

No. 18–837. HARRIS, STATE HEALTH OFFICER, ET AL. *v.* WEST ALABAMA WOMEN’S CENTER ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 900 F. 3d 1310.

JUSTICE THOMAS, concurring.

In 2016, Alabama adopted a law prohibiting “dismemberment abortion[s].” Ala. Code §26–23G–3(a). The law does not prohibit women from obtaining an abortion, but it does prevent abortion providers from purposefully “dismember[ing] a living unborn child and extract[ing] him or her one piece at a time from the uterus through use of clamps, grasping forceps, tongs, scissors, or similar instruments” that “slice, crush, or grasp . . . a portion of the unborn child’s body to cut or rip it off.” §26–23G–2(3). As the Court of Appeals explained, this method of abortion is particularly gruesome:

“In this type of abortion the unborn child dies the way anyone else would if dismembered alive. It bleeds to death as it is torn limb from limb. It can, however, survive for a time while its limbs are being torn off. . . . At the end of the abortion—after the larger pieces of the unborn child have been torn off with forceps and the remaining pieces sucked out with a vacuum—the abortionist is left with a tray full of pieces.” *West Alabama Women’s Center v. Williamson*, 900 F. 3d 1310, 1319–1320 (CA11 2018) (citations and internal quotation marks omitted).

Dismembering a child alive is—in respondents’ words—“the most commonly used second-trimester abortion method,” and it “account[s] for 99% of abortions in the state from [15 weeks] onward.” Brief in Opposition 1. Put differently, the more developed the child, the more likely an abortion will involve dismembering it.